

M/s Shree Bhawani Mills v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 May 2023 · Writ-C No. 32104 of 2013 · **Writ dismissed following Dev Prayag Paper Mill on additional security.**

HEADNOTE

Allahabad High Court dismissed a writ challenging UPERC's 8 May 2013 additional-security demand on industrial consumers above 45 kW, and the bill applying that tariff, because the issue stood decided against the consumer in Dev Prayag Paper Mill, 2017 (3) ALJ 497. An earlier 2013 order had tagged the petition with other para 4.20 challenges and restrained the demand until further orders.

FACTUAL SUMMARY

An industrial consumer challenged UPERC's 8 May 2013 demand notice imposing additional security on industrial consumers with load above 45 kW, and the bill applying that tariff. In 2013 the writ was tagged with other paragraph 4.20 additional-security challenges and the respondents were restrained from demanding additional security. After adjournments in 2023, petitioner's counsel fairly stated the issue stood decided against the petitioner in Dev Prayag Paper Mill. The Division Bench dismissed the petition on that footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ challenging UPERC's 8 May 2013 demand notice imposing additional security on industrial consumers with load above 45 kW, and the bill applying that tariff, is dismissed; the issue stands decided against the consumer for the reasons in Dev Prayag Paper Mill. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> 2017 (3) ALJ 497			Court	Referred